

5.

| CASE #      | CASE NAME                                        | HEARING NAME                                                     |
|-------------|--------------------------------------------------|------------------------------------------------------------------|
| CVRI2600400 | EIGENBERG vs USA<br>WASTE OF CALIFORNIA,<br>INC. | MOTION FOR PRELIMINARY<br>APPROVAL OF CLASS ACTION<br>SETTLEMENT |

**Tentative Ruling:**

Appearances requested to discuss whether appointment of plaintiff's counsel as settlement administrator is appropriate and whether the class notice should be provided in Spanish. Also, how could a class action settlement prevent class members from suing on claims that have not accrued yet, e.g., based upon claims for odor or other emissions that *occur in the 36 months after final approval*? How does the settlement address class members who cannot declare under penalty of perjury that they have not been diagnosed with any symptoms associated with sickness, disease, or physical injury that may have been caused by defendant's action or inaction? Need to discuss release language vs. claims alleged in the complaint (settlement agreement, ¶ 2.u)

6.

| CASE #     | CASE NAME                                      | HEARING NAME        |
|------------|------------------------------------------------|---------------------|
| RIC2002687 | BOREL vs SOUTHERN<br>CALIFORNIA GAS<br>COMPANY | MOTION TO TAX COSTS |

**Tentative Ruling:** Previously continued to September 22.